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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiffs,

vs.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5.

Defendants.

Case No.: 8:25-cv-00191-SRM-KES

PLAINTIFF'S REPLY TO THE VONS COMPANIES, INC.'S OPPOSITION TO MOTION FOR CLASS CERTIFICATION

Date: April 15, 2026
Time: 1:30 p.m.
Ctrm: 5D
Judge: Hon. Serena R. Murillo

[Filed concurrently with Declaration of Roberto Sandoval Carrillo; Evidentiary Objections to Declaration of Karimah Lamar.]

I. INTRODUCTION

Who wants to live in a world with no forgiveness, no redemption, and no second chances? Apparently, Vons does. In its Opposition Vons does not deny that it has a common practice of denying employment to applicants with SOR information in their background reports. Instead, it argues that it relies on SOR information to "protect those at risk." But this is a merits argument, and it commonly applies to every Megan's Law Class member. Vons' acknowledged practice of relying on SOR information in employment decisions shows the Megan's Law Class is appropriate for class certification. Similarly, with respect to the Fair Chance Class Vons offers zero evidence of any individualized assessment it conducted, for Plaintiff or any of the other 901 Fair Chance Class members. As such, Vons fails to satisfy its burden of proof to show any individualized issue bars certification of the Fair Chance Class.

Vons' Opposition does not identify a genuine Rule 23 defect. Instead, it largely sets forth merits defenses and *ad hominem* attacks on Plaintiff as purported class-certification arguments. But Rule 23 asks whether Plaintiff's claims under the Megan's Law and Fair Chance Act are cohesive enough to be tried through common proof—not whether Vons has assembled inflammatory facts it hopes to use against Plaintiff. Vons has already identified the members of the Classes, and Plaintiff accurately reflects the groups he seeks to represent – those who were denied employment as a result of SOR information in their background reports without any individualized assessment of their fitness for the position. Accordingly, Plaintiff respectfully requests the Court grant class certification.

II. ARGUMENT

A. Plaintiff Satisfies Rule 23(a)(4)'s Adequacy Requirement.

Adequacy turns primarily on whether the representative has conflicts with absent class members and whether he will prosecute the action vigorously through qualified counsel. *Chupa v. Armstrong Flooring, Inc.,* No. 219CV09840CASMRWX, 2020 WL 1032420, at *2 (C.D. Cal. Mar. 2, 2020) (citations omitted). Vons does not argue that Plaintiff has any conflicts with class members, because he does not. *See generally* Opp.; Declaration of Roberto Sandoval Carrillo in support of Class Certification, Dkt. No. 55-2 ("**Carrillo**

Decl."), ¶ 20. Vons also does not argue that Plaintiff will not vigorously prosecute the action, because he has (by bringing this action, reviewing pleadings, preparing discovery responses, gathering nearly 600 pages of documents, preparing and appearing for deposition, always being readily available to discuss this action, and preparing declarations in support of class certification) and will continue to do so. Id. That should end the adequacy inquiry.

Vons' principal adequacy argument is that Plaintiff's conviction history, supervised-release issues, and personal circumstances make him vulnerable to impeachment. As a threshold matter, Vons makes false and misleading representations in its Opposition brief. And importantly, they do not show that Plaintiff lacks credibility or truthfulness. In fact, Plaintiff's declaration filed concurrently with this reply brief shows that Plaintiff is overly candid, truthful, and thoughtful in his efforts to comply with supervisory guidelines, at time to his detriment. *See* Declaration of Roberto Sandoval Carrillo in support of Reply Brief ("Carrillo Reply Decl.").

Vons focuses on Plaintiff's conviction and supervised release as the hurdle to certification, citing the Ninth Circuit decision in *Meyer v. Portfolio Recovery Associates, LLC*. However, *Meyer* supports a finding of adequacy. In *Meyer*, the Ninth Circuit found the district court acted within its discretion in concluding that a proposed representative remained adequate notwithstanding two prior criminal convictions involving "deceptive conduct." 707 F.3d 1036, 1042 (9th Cir. 2012). The Ninth Circuit did not announce a rule that a criminal record, including one showing deceptive conduct, bars adequacy. It recognized that adequacy is a pragmatic inquiry committed to the district court's discretion.

When considering prior convictions, "[m]ost courts have rejected the contention that a proposed representative is inadequate because of prior unrelated unsavory, unethical, or even illegal conduct." *Chupa v. Armstrong Flooring, Inc.,* No. 219CV09840CASMRWX, 2020 WL 1032420, at *3 (C.D. Cal. Mar. 2, 2020) (holding bank robbery not a *per se* crime of dishonesty and does not render plaintiff inadequate under Rule 23) (quoting 3 Newberg on Class Actions § 3.68 (5th ed. 2019) (citing cases))." "Exceptions have been made for unrelated criminal convictions only in a 'few instances where issues of credibility' were

raised by 'confirmed examples of *past dishonesty* such as fraud or a criminal conviction' for an offense that requires proof of dishonesty." Id. (citation omitted); *Delgado v. New Albertson's, Inc.*, No. SACV080806DOC, 2010 WL 11507599, at *4 (C.D. Cal. Mar. 15, 2010) ("Defendants argue that Delgado is not adequate because he has prior criminal convictions and has a unique animus against Albertson's because he has filed prior lawsuits against them.… credibility concerns are not applicable here."); *White v. E-Loan, Inc.*, No. C05-02080SI, 2006 WL 2411420, at *3 (N.D. Cal. Aug. 18, 2006) (finding adequacy where plaintiff had previously been convicted of four separate "theft convictions").

Nor does *Porath v. Logitech, Inc*., No. 18-cv-03091-WHA, 2019 WL 6134936, at *5 (N.D. Cal. Nov. 18, 2019), compel denial here. *Porath* was a district court decision based on a very different record where the court suspected collusion between the plaintiff's counsel and defense counsel, and the ruling turned on the district court's discretionary assessment of a particular plaintiff's long history of convictions, including three felonies for burglary and grand theft of property. Id. at *5 ("In short, to saddle a class with a representative who has seven criminal convictions, is a convicted felon three times over, has a history of substance abuse, and of not reporting to his probation officer, and of depression, is unacceptable."). It does not establish that any plaintiff with a criminal conviction or alleged substance-abuse history is categorically inadequate. If it did, a large swath of employment-discrimination and Fair Chance Act litigation would be impossible by definition. That is not the law.

More fundamentally, Vons' argument would improperly allow defendants to defeat class actions in criminal history employment cases simply by attacking the named plaintiff's criminal history—the very characteristic that makes the named plaintiff a member of the proposed class. Rule 23 does not permit that kind of circularity. The focus is whether the representative can fairly and vigorously litigate the common class issues without concerns of a potential conflict, not whether the defense has found inflammatory facts to emphasize. *See Ellis v. Costco Wholesale Corp.*, 657 F.3d 970, 985 (9th Cir. 2011). There are no facts to support a finding that Plaintiff engaged in dishonest behavior in the criminal proceedings, ever. *See* Carrillo Reply Decl. Plaintiff is a highly educated, intelligent and hard-working

individual, and despite the parole violation, the record shows that Plaintiff has and will continue to fairly and adequately represent the class.

B. Typicality Is Satisfied For The Megan's Law Class

"Typicality is satisfied when the representative's claims are reasonably coextensive with those of absent class members, even if they are not substantially identical." *DZ Rsrv. v. Meta Platforms, Inc.,* 96 F.4th 1223, 1238 (9th Cir. 2024), cert. denied, 145 S. Ct. 1051 (2025). A unique defense defeats typicality only when there is a danger that the named plaintiff will become preoccupied with that defense to the detriment of the class. *Id.* at 1238-39. Vons argues Plaintiff is atypical because he disclosed his conviction, and "Vons will show that even if Plaintiff had **never** appeared on the MLW, the company would have initiated the adverse action process based solely on his own disclosure of the underlying conviction." Opp. at 24:13-16 (bold in original). Vons' argument is irrelevant here. Whether or not Plaintiff disclosed his conviction does not free Vons from liability under the Megan's Law. The Megan's Law does not require the SOR information be the "but-for cause of the employment decision." Opp. at 24:17-19; Cal. Penal Code § 290.46(j)(2)(E) (prohibiting "use *of any information* that is disclosed" in Megan's Law Website). The plain language of the statute provides that the "use of any" SOR information in employment decisions is prohibited, plain and simple. The record shows that Vons had a common practice of using SOR information in denying employment to Plaintiff and more than 40 other persons. Declaration of Raymond Y. Kim in support of Motion for Class Certification, Dkt. No. 55-1 ("**Kim Decl.**"), ¶ 14, Ex. 4. Vons ***does not*** dispute this. Indeed, all Megan's Law Class members received the Adverse Action Notices from Vons based on Vons' use of SOR information. Specifically, after receiving a conditional job offer from Vons members of the Megan's Law Class, including Plaintiff, received the Adverse Action Notice stating that Vons' decision to withdraw its conditional employment offer was "influenced in whole or in part by" the SOR information in their background reports. Carrillo Decl., ¶ 16, Ex. I; Kim Decl., ¶ 18. The Megan's Law claim is not defeated merely because Plaintiff truthfully disclosed his conviction history; the Adverse Action Notice itself states the decision was

influenced "in whole or in part" by the report and identified "Sex Offender" as the conviction. Carrillo Decl., ¶ 16, Ex. I. Indeed, Ms. North, Vons' corporate witness, testified that Vons "partially relied" on SOR information. Kim Decl., Dkt. No. 14, **Ex. 4**, North Dep., at 52:3-25; 54:2-25. Thus, Plaintiff's claims are typical of the Megan's Law Class.

C. Plaintiff Is Typical Of The Fair Chance Class

Vons argues that Plaintiff is not typical of the Fair Chance Class on the grounds that "he was not an applicant at the time Vons conducted its individualized assessment and terminated his employment." Opp. at 24:28-25:2. As a threshold matter, this is a merits issue that has no bearing at this class certification stage. *Olean Wholesale Grocery Coop., Inc. v. Bumble Bee Foods LLC*, 31 F.4th 651, 667 (9th Cir. 2022) ("[A] district court cannot decline certification merely because it considers plaintiffs' evidence relating to the common question to be unpersuasive and unlikely to succeed in carrying the plaintiffs' burden of proof on that issue.") (citation omitted). *Second*, Vons' "not an applicant" argument applies equally to everyone in the Fair Chance Class, because they all, like Plaintiff, received a conditional job offer pending the background investigation, pursuant to California law. *See* Cal. Gov. Code 12952 ("[I]t is an unlawful employment practice for an employer…: (2) To inquire into or consider the conviction history of the applicant, including any inquiry about conviction history on any employment application, until after the employer has made a conditional offer of employment to the applicant."). Thus, the "not an applicant" argument applies to every member of the Fair Chance Class, and does not render Plaintiff atypical.

Third, this argument will ultimately fail on the merits, because as someone who received a conditional offer of employment, Plaintiff and Fair Chance Class members are "applicants" as that term is defined by the FEHA. 2 C.C.R. § 11017.1(j)(1) ("'Applicant' includes… individuals who have been conditionally offered employment[.]"); Carrillo Decl. ¶¶ 7-8, 16, Ex. I ("[Y]our conditional offer of employment… has been withdrawn.").

D. Commonality And Predominance Is Satisfied for the Megan's Law Class

The Megan's Law Class presents a straightforward common question that predominates over any individualized issue: whether Vons used SOR information for

employment purposes in adjudicating California applicants. The record establishes commonality, because Plaintiff, like other Megan's Law Class members, was denied employment based on the SOR information contained in his background report.

As a threshold matter, the notices Vons sent to the Megan's Law Class members establish that it uses SOR information in the background reports to make employment decisions. According to Ms. North, the "FCRA 613" notices were sent to Megan's Law Class members as "required by law"; these notices shows that Vons uses the SOR information from background reports for employment purposes. Carrillo Decl., Ex. C ("The above listed employer/agency has certified that ***it is using such public record information to determine your eligibility for employment***[.]") (emphasis added); Kim Decl., Ex. 4 (North Dep., 88:13-89:2). Similarly, the Pre-Adverse Action Notice from Vons shows that it uses SOR information from background reports for employment purposes. Carrillo Decl., ¶ 12, Ex. E ("In evaluating your conditional offer of employment… we received the enclosed screening report... **We have identified the following convictions on your report to be job-related:** Sex Offender") (bold in original); Kim Decl., (North Dep., 106:19-107:19). And as discussed above, the Adverse Action Notice, received by Plaintiff and the Megan's Law class members states that Vons' decision to withdraw the conditional offer of employment "was influenced in whole or in part by a pre-employment screening report prepared by Asurint" and the SOR information contained therein. Carrillo Decl., ¶ 16, Ex. I.

Ms. North testified that candidates with SOR information in their background reports receive the FCRA 613 notice, Pre-Adverse Action Notice, and Adverse Action Notice, because that is the California "format" Vons uses. Kim Decl., Ex. 4, Toni North Dep., at 114:23-116:10; 145:16-146:8 ("A. Anyone who fails is going to get the pre-adverse action and then the FCRA 613 in their consumer report. If they remain a fail after the waiting period, they're going to get the adverse action. Q. And if their highest crime is sex offender, it'll state in the adverse action notice "sex offender"? A. Yes, because that's the format we have to follow in California."). Clearly, Vons uses SOR information to make employment decisions. What is more, Ms. North testified that Vons "partially" relies on SOR information

for employment purposes. Kim Decl., ¶ 14, Ex. 4. Ms. North also testified that applicants with SOR information in their background reports are categorized with the "Highest Crime" of "Sex Offender," and that she is not aware of a single person with "Highest Crime" of "Sex Offender" hired by Vons. Kim Decl., ¶ 16, Ex. 4. This also shows that Vons has a common practice of denying applicants with SOR information in their background reports. Vons identified approximately 43 applicants who applied for employment, had background reports with SOR information, and were denied employment as a result. Kim Decl. ¶ 15. Notably, in the Opposition Vons does not dispute any of these facts. Thus, common issues predominate with respect to the Megan's Law Class.

1. Vons' Merits Argument That It Protected "A Person At Risk" Commonly Applies To All Megan's Law Class Members

Vons also responds by arguing that Penal Code section 290.46(j)(1) authorizes use of SOR information "to protect a person at risk," and therefore individualized inquiries are required to determine whether or not it violated the Megan's Law. Vons' argument proves too much. Whether Vons' asserted use falls within section 290.46(j)(1) is a merits defense common to the *entire* Megan's Law Class; it does not defeat commonality. The record shows that Vons withdrew conditional employment offers to every person with SOR information in their background reports "to protect as person at risk." Ms. North testified that applicants with SOR information in their background reports are categorized with the "Highest Crime" of "Sex Offender," and that she is not aware of a single person with "Highest Crime" of "Sex Offender" hired by Vons. Kim Decl., ¶¶ 16-17, Ex. 4. Ms. North also testified that all store employees have access to "at-risk" people. Kim Decl., Ex. 4 (North Dep., at 183:23-184:4, 214:11-215:10) ("All our clerks in the store have access to at-risk people, whether it's customers or whether they're meeting them in the bathroom or they're meeting minor employees in the break room or the receiving areas. So in every case, they have potential contact with at-risk people."). In addition, the class data shows a common, blanket result for all fifty-six (56) applicants with the Highest Crime of "Sex Offender" — all were "Failed" and denied employment. Kim Decl. ¶¶ 16-17. And the standardized Adverse Action notices

identified "Sex Offender" as the disqualifying conviction. Carrillo Decl. ¶ 16; Kim Decl. ¶ 19. This common evidence is precisely what commonality and predominance requires. Because Vons withdrew conditional offers from every applicant with SOR information "to protect persons at risk," this merits defense does not create individualized issues.

E. Commonality And Predominance Is Satisfied for the Fair Chance Class

The common question predominating the Fair Chance Class is whether Vons maintained and applied a common practice of denying applicants based on conviction history without conducting any compliant individualized assessment. Here, there is no evidence that Vons individually assessed Plaintiff or any members of the Fair Chance Class. Vons argues that its SOP requires individualized assessments.[1] Specifically, Ms. Jones, a "HR Compliance Analyst," states in her declaration that, "Each applicant with a criminal history is adjudicated using Vons' Standard Operating Procedures ('SOP')." Declaration of Courtney Jones, Dkt. No. 56-12 ("Jones Decl."), ¶ 5. Ms. Jones claims, "While 'Albertsons' appears at the top of the document, the [sic] I use this SOP to adjudicate background checks for Vons applicants." Id. But a written SOP does not resolve the issue. The question is what Vons actually did in carrying out individualized assessments, and whether that complied with the Fair Chance Act. Other than an unsupported, self-serving declaration based on hearsay, Vons proffers no evidence showing that it conducted an individualized assessment for Plaintiff or anyone else.

In the Ninth Circuit, "a plaintiff must merely demonstrate by a preponderance of the evidence that a common question of law or fact exists—an issue that is capable of class-wide resolution." *Van v. LLR, Inc.,* 61 F.4th 1053, 1066–67 (9th Cir. 2023) (*citing Olean*, 31 F.4th at 664–65 (*en banc*). "If the plaintiff demonstrates that class issues exist, the defendant must invoke individualized issues and *provide sufficient evidence that the individualized issues bar recovery* on at least some claims, thus raising the spectre of class-member-by-class-member adjudication of the issue." Id. (citation omitted) (italics added). In the Ninth Circuit, courts "do not consider ... defenses that [the defendant] might advance or for which it has presented

[1] Plaintiff objects to the admissibility of the Albertsons SOP, which Vons's outside counsel attaches to her declaration without any personal knowledge or proper authentication. *See* Evidentiary Objection.

no evidence." *True Health Chiropractic, Inc. v. McKesson Corp.*, 896 F.3d 923, 932 (9th Cir. 2018); *Frasco v. Flo Health, Inc.,* 349 F.R.D. 557, 575 (N.D. Cal. 2025) (finding predominance where defendant's evidence of individualized issues was lacking: "Defendants made no effort to demonstrate that a meaningful portion of the proposed classes might have seen or read these three specific articles[.]"); *Bazarganfard v. Club 360 LLC*, 344 F.R.D. 411, 426 (C.D. Cal. 2023) ("Defendants cannot defeat predominance based on speculation regarding individualized issues unsupported by evidence.").

A written policy such as the SOP, without more, is insufficient to defeat commonality or predominance. There must be evidence to support that such a policy was actually implemented, such as how, when and with whom it was carried out. *Miles v. Kirkland's Stores Inc*., 89 F.4th 1217, 1223 (9th Cir. 2024) (reversing trial court's denial of class certification on rest break claim: "The parties here dispute how Kirkland's enforced this policy with each side submitting dueling declarations from employees and managers."). For example, the court "still need[s] to look at evidence of whether the company consistently implemented and enforced the policy across all employees during the class period." Id.

Here, Plaintiff has submitted evidence that Vons did not conduct an individualized assessment of his conviction with the role of a deli-clerk. After receiving the Pre-Adverse Action Notice, on March 6, 2023 Plaintiff emailed Vons twice, explained his work history as a teacher "without any incidents of misconduct," that he "was not a hands on offender," and submitted mitigating and rehabilitative evidence. Carrillo Decl., ¶ 13, Ex. F. That very same day, on March 6 Vons responded via email, "I have no access to background checks and I am not informed when an applicant fails to pass. I do not have the ability to override your background check. You will need to go through Asurint." Carrillo Decl., ¶ 14, Ex. G. Clearly, Vons had not done an individualized assessment by this point. In response, the following day on March 7 Plaintiff emailed Vons at a different email address. In the email Plaintiff explained again that he had "worked as a high school teacher for 15 years, and there were never any incidents of misconduct," and provided the School District's phone number so Vons could verify his statements. He also provided the same mitigating and rehabilitation

evidence he had submitted in his March 6 email to Vons and Asurint. That same day Vons withdrew its conditional employment offer, and Asurint sent Plaintiff the Adverse Action Notice. Id. ¶ 16. There is no evidence that Vons conducted an individualized assessment on March 6, 7 or any other date. Ms. Jones baldly states, "I personally reviewed the mitigating information provided by Plaintiff… but it was insufficient." Jones Decl., ¶ 6. At a minimum, the Fair Chance Act requires that the employer consider: "(i) The nature and gravity of the offense or conduct. (ii) The time that has passed since the offense or conduct and completion of the sentence. (iii) The nature of the job held or sought." Cal. Gov. Code § 12952(c)(1)(A). The current implementing regulations specifically require much more, including "Whether the harm was to property or people," "The degree of the harm (e.g., amount of loss in theft)," "The permanence of the harm," and "Whether the context in which the conviction occurred is likely to arise in the workplace." Cal. Code Regs. tit. 2, § 11017.1(c). Ms. Jones offers no facts about when she reviewed Plaintiff's mitigating information, what she reviewed, or whether she considered any of the Fair Chance Act factors. She merely states that she considered Plaintiff to be a risk because he "was going to be near minor children." This *does not* qualify as an individualized assessment. Vons does not offer a single business record, email, or anything else to show it ever conducted an individualized assessment of anyone. Therefore, Vons fails to rebut the presumption that it did not conduct individualized assessments and to identify individualized issues to overcome a finding of predominance.

F. The Proposed Injunctive Classes Are Proper Under Rule 23(b)(2).

Vons does not oppose class certification under Rule 23(b)(2). Rule 23(b)(2) applies when the defendant has acted on grounds generally applicable to the class, making final injunctive relief appropriate for the class as a whole. *Parsons*, 754 F.3d at 686-89. That standard is satisfied here. Plaintiff seeks uniform injunctive relief requiring Vons to cease using Megan's Law Website information for employment purposes and to implement and carry out a compliant Fair Chance Act assessment process. Complaint, Prayer ¶¶ 6-8; Motion at 25-26. Those injunctions would apply equally to all class members and future applicants.

This is precisely the type of prospective, policy-directed relief Rule 23(b)(2) is designed to address. *Parsons*, 754 F.3d at 688-89.

Dated: March 25, 2026

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